



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

MAY 2 1991

DOT-E 10362

1. Shannon Packaging Co., Covina, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of various corrosive solids and poison B solids described in paragraph 3 below subject to the requirements specified herein. This exemption authorizes the manufacturing, marking and sale of non-reusable, fiberboard bulk boxes described in paragraph 7 below, for the shipment of certain waste corrosive solids or poison B solids, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Jefferson Smurfit Corporation & Container Corporation application dated February 23, 1990 (changed to Shannon Packaging Co. by letter dated on July 11, 1990); and supplemental information dated July 21, 1990; November 5, 1990; November 14, 1990; December 3, 1990; and December 17, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Corrosive solids, classed as corrosive materials; Poison B solids, classed as poison B, and other solid (dry) hazardous materials specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive solid, n.o.s.; Poison B solid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate, preceded by the word "Waste".

5. REGULATION AFFECTED. 49 CFR 172.245b, 173.365.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification non-reusable fiberboard bulk box of double-wall corrugated fiberboard construction, mounted securely to a wood pallet base via metal bands. The box, configured in three sizes, fabricated according to the description in the application and supplemental information dated February 23, 1990; July 11, 1990; July 21, 1990; November 5, 1990; November 14, 1990; December 3, 1990;

and December 17, 1990 is fitted with a non reusable lining of Tyvek-lined/aluminum foil/polyethylene of 0.006-inch minimum thickness and contains no more than 2,500 pounds for the 36" 36" 36" box, 813 pounds for the 21.5" 21.5" 36" box and 566 pounds for the 21.5" 21.5" 25" box of product. The packaging, closed as for shipment, must be capable of satisfactorily withstanding the performance tests (Vibration, Incline Impact, Bottom Tilt-Drop, Static Compression, Dynamic Compression and Drop) prescribed and results of which are furnished in Package Research Laboratory report dated February 5, 1990 and National Technical Systems test report dated October 31, 1990 included in the application.

**8. SPECIAL PROVISIONS.**

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging(s) described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. Packagings are to be used for waste solids from plant site to waste disposal site and are not to be reused.

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Each packaging manufactured in accordance with the requirements of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with registration symbol designated for a specific manufacturing facility.

f. Each box must be marked "DOT-E 10362" and "NON-REUSABLE CONTAINER" in letters at least two inches high on a contrasting background on two opposite sides of the box.

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9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. March 31, 1993.

Issued at Washington, D.C.

*Sgt. Suzanne H. Gopett*  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.